

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF NEW JERSEY**

IN RE INCREASE OF IMMIGRATION-RELATED :
HABEAS CORPUS PETITIONS SEEKING : **SECOND AMENDED**
EMERGENT RELIEF : **STANDING ORDER**
: **2026-02**

WHEREAS, a surge in the filing of immigration-related habeas corpus petitions both nationwide and, particularly, in this District is continuing; and

WHEREAS, the Court entered Standing Order 2026-02 on February 17, 2026, to set forth procedures for the filing of such petitions; and

WHEREAS, the Court subsequently entered Amended Standing Order 2026-02 on April 2, 2026, to add a second designated email address for notice of a petition filing; and

WHEREAS, the filings in this District generally challenge the legality of immigration detention and custody and request emergent adjudication by the Court; and

WHEREAS, many of these filings occur outside of the Court's regular business hours (8:30AM-5:00PM Monday-Friday, non-Court holidays) including during weekends and on Court holidays; and

WHEREAS, the volume and timing of these filings is creating a substantial burden on the Court's ability to expeditiously docket, assign, and address these filings; and

WHEREAS, the need to docket, assign, and address these petitions in a timely and effective manner warrants modified procedures; accordingly

IT IS ORDERED, effective immediately, that any individual, counsel or pro se, who files a petition for writ of habeas corpus pursuant to 28 U.S.C. § 2241, with a request for a temporary restraining order seeking, *inter alia*, immediate release from immigration detention and custody within this District must alert the Court of such filing by simultaneously:

- (1) electronically filing the petition through the Court's ECF system, and
- (2) emailing the petition to: emergentimmhabeas@njd.uscourts.gov and usanj-habeascases@usdoj.gov; and it is further

ORDERED that if Petitioner alleges at the time of filing that Petitioner has no criminal history, Petitioner's counsel must certify at that time that counsel has complied with Federal Rule of Civil Procedure 11(b) and, after a reasonable inquiry, has a good-faith basis for making such representation; and it is further

ORDERED that failure to follow these procedures may result in a delayed adjudication of the matter, which may prejudice the interests of the individual challenging the legality of immigration detention and custody; and it is further

ORDERED that the Clerk of Court shall post this Standing Order on the Court's website at: <https://www.njd.uscourts.gov>.

Date: August 5, 2026

s/Renée Marie Bumb
Hon. Renée Marie Bumb
Chief United States District Judge